

son tort (*d*), renew a lease in his own name, he will be deemed in equity to be trustee for those interested in the original term.

Ch. Ca. 207; and see *Mulvany v. Dillon*, 1 B. & B. 409; *Fosbrooke v. Balguy*, 1 M. & K. 226; *Owen v. Williams*, Amb. 734; *Nesbitt v. Tredennick*, 1 B. & B. 46, *per Lord Man-*ners; [*Kelly v. Kelly*, 8 I. R. Eq. 403.]
 (d) *Mulvany v. Dillon*, 1 B. & B. 409.

there may be an absence of liability, even with the presence of fraud, as in the case of minors, yet equity will relieve, for rules made to protect certain classes may not serve as a shield for their frauds; *Hall v. Timmons*, 2 Rich. Eq. 120; *Davis v. Tingle*, 8 B. Mon. 539; the simplest case of fraud is that arising from circumstances and facts of imposition; *Beegle v. Wentz*, 55 Pa. St. 369; where a transfer of a legal title has been procured by fraud, equity will compel a re-conveyance; *Smith v. Richards*, 13 Pet. 26; *Tyler v. Black*, 13 How. 231; *Dowd v. Tucker*, 41 Conn. 198; *Williams v. Vreeland*, 20 N. J. Eq. 417; *Beach v. Dyer*, 93 Ill. 295; *Walker v. Dunlop*, 5 Hayw. 271; *Lewis v. McLemore*, 10 Yerg. 206; *Boyce v. Grundy*, 3 Pet. 210; *Prescott v. Wright*, 4 Gray, 461; *Laidlaw v. Organ*, 2 Wheat. 195; it is immaterial whether a party makes a false assertion knowingly or ignorantly; *Hazard v. Irwin*, 18 Pick. 85; *Hammatt v. Emerson*, 27 Me. 308; *Doggett v. Emerson*, 3 Story, 733; *Pratt v. Philbrook*, 33 Me. 17; equity will make a trustee of a purchaser at an auction sale who has prevented competition; *Pearson v. East*, 36 Ind. 27; *Gilmore v. Johnson*, 29 Ga. 67; *Soggins v. Heard*, 31 Miss. 426; *Wolford v. Herrington*, 74 Pa. St. 311; *Ferguson v. Williamson*, 20 Ark. 272; the principal is liable if he ratify the fraudulent act of his agent; *Kibbe v. Ins. Co.* 11 Gray, 163; *Fitzsimmons v. Joslyn*, 21 Vt. 129; *Elwell v. Chamberlin*, 31 N. Y. 619; *Stone v. Denny*, 4 Met. 161; *Oliver v. Piatt*, 3 How. 333; *Hess v. Dean*, 66 Tex. 663; the deception must be in matters of fact; *Rush v. Vought*, 55 Pa. St. 437; *Tyler v. Black*, 13 How. 230; *Best v. Stow*, 2 Sandf. 298; *Manning v. Albee*, 11 Allen, 522; *Medbury v. Watson*, 6 Met. 259; and not of opinion merely; *Hemmer v. Cooper*, 8 Allen, 334; *Speiglemyer v. Crawford*, 6 Paige, 254; *Hough v. Richardson*, 3 Story, 696; and of some material fact; *Clark v. Everhart*, 63 Pa. St. 347; *Stebbins v. Eddy*, 4 Mason, 414; *Winston v. Gwathmey*, 8 B. Mon. 19; peculiarly within the knowledge of one party; *Tindall v. Harkinson*, 19 Ga. 448; *Juzan v. Toulmin*, 9 Ala. 662; *Hobbs v. Parker*, 31 Me. 143.

Concealment.—If a person, standing in a fiduciary relation to another, keeps valuable information from him, he may become a constructive trustee; *Etting v. Bank of U. S.* 11 Wheat. 59; *Miller v. Welles*, 23 Conn. 33; *Mathews v. Bliss*, 22 Pick. 48; *Wellford v. Chancellor*, 5 Gratt. 39; this may be true if no such relation exists; *Evans v. Keeland*, 9 Ala. 42; *Bank v. Cooper*, 36 Me. 195; *Foote v. Foote*, 58 Barb. 258; *Hanson v. Edgerly*, 29 N. H. 343; *Bank v. Baxter*, 31 Vt. 101; *Babcock v. Case*, 61 Pa. St. 427; *Jenkins v. Eldredge*, 3 Story, 181; *Church v. Ruland*, 64 Pa. St. 432.

For fraud in case of will, see *Murray v. Murphy*, 39 Miss. 214; *Waters v. Stickney*, 12 Allen, 1; *Williams v. Fitch*, 18 N. Y. 546; *Tarver v. Tarver*, 9 Pet. 180; *Fouvergne v. New Orleans*, 18 How. 470; *Morningstar v. Selby*, 15 Ohio, 345; *Gaines v. Hennen*, 24 How. 553; *Allison v. Allison*, 7 Dana, 90.

If a conveyance is made through ignorance, accident, or mistake, equity